



CHAPTER cv.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Gas and Water Works Facilities Act 1870 relating to Braintree and Bocking Gas Great Marlow Gas Ilford Gas Stone Gas Taunton Gas and Watford Gas. A.D. 1920.
[4th August 1920.]

WHEREAS under the authority of the Gas and Water Works Facilities Act 1870 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act annexed: 33 & 34 Viet. c. 70.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Orders made by the Board of Trade as aforesaid and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Gas Orders Confirmation Act 1920. Short title.

2. The Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and effect. Confirmation of Orders in schedule.

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SCHEDULE.

LIST OF ORDERS.

BRAINTREE AND BOCKING GAS.—Order empowering the Braintree and Bocking Gas Company Limited to construct additional gasworks to raise additional capital and for other purposes in connection with their undertaking.

GREAT MARLOW GAS.—Order empowering the Great Marlow Gas Company Limited to raise additional capital and for other purposes.

ILFORD GAS.—Order empowering the Ilford Gas Company to raise additional capital to purchase additional lands to construct additional gasworks and for other purposes.

STONE GAS.—Order extending the limits for the supply of gas by the Stone Gas and Electricity Company Limited.

TAUNTON GAS.—Order to empower the Taunton Gas Light and Coke Company to raise additional capital and for other purposes.

WATFORD GAS.—Order authorising the Watford Gas and Coke Company to construct and maintain additional gasworks and for other purposes.

BRAINTREE AND BOCKING GAS.

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Order empowering the Braintree and Bocking Gas Company Limited to construct additional gasworks to raise additional capital and for other purposes in connection with their undertaking. *Braintree and Bocking.*

1. This Order may be cited as the Braintree and Bocking Gas Order 1920 and the Braintree and Bocking Gas Order 1874 (in this Order referred to as "the Order of 1874") and this Order may be cited together as the Braintree and Bocking Gas Orders 1874 and 1920. Short titles.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order." Commencement of Order.

3. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking) and of the Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871 are incorporated with this Order (except where expressly varied by the Order of 1874 or this Order) and form part of this Order. Provided that for the purpose of its incorporation with the Order of 1874 and this Order section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Undertakers shall be alike in terms and amount under like circumstances" to all consumers" were added at the end of that section. Incorporation of Acts.

4. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

5. The Braintree and Bocking Gas Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers." Undertakers.

New Capital.

6. The limitation prescribed by the Order of 1874 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as

A.D. 1920. "the new capital" not exceeding eighty thousand pounds including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order. Provided that the share capital of the Undertakers in respect of the undertaking shall not for such purposes exceed in the whole one hundred thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

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New capital
to form part
of additional
capital.

7. The new capital shall form part of the capital of the Undertakers and shall rank *pari passu* with the additional capital authorised by the Order of 1874.

As to sale of
shares or
stock by
auction or
tender.

8.—(1) All shares or stock forming part of the new capital shall be issued in accordance with the provisions of this section.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine. Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of every local authority having jurisdiction within the limits of supply of the Undertakers and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:

(b) A reserve price shall be fixed and notice thereof shall be sent by the directors of the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in such manner as may be prescribed in a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

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(4) Any shares or stock which have been offered for sale in accordance with the foregoing provisions of this Order and are not sold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the shares or stock as the case may be.

9. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise from the issue of any shares or stock under the provisions of this Order by way of premium shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application
of premium
arising on
sale of shares
or stock.

10. The Undertakers shall not in any year declare or make out of their profits any larger dividends on the new capital than seven pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of such capital as may be issued as preference capital.

Limit of
dividend on
new capit

11. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the net revenues of the Undertakers applicable to dividend are insufficient to pay the full amount of the authorised rates on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividend of each such class.

Dividend on
different
classes of
ordinary
shares to be
paid pro-
portionately.

12. The borrowing of the sum of four thousand pounds already borrowed by the Undertakers is hereby confirmed and subject thereto

Limit of
borrowing
power

A.D. 1920. the amount of all moneys borrowed by the Undertakers and secured by mortgage of the undertaking shall not at any time exceed in the whole (inclusive of the said sum of four thousand pounds) one-third of the capital of the Undertakers at the time actually raised by the issue of shares or stock including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order and no higher rate of interest than six pounds per centum per annum shall be paid by the Undertakers without the consent of the Board of Trade in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid.

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Lands.

Power to
purchase
additional
gas lands.

13. The Undertakers may for the purposes of the undertaking purchase take hold and use in addition to the lands described in the schedule to the Order of 1874 and the schedule to this Order annexed any lands which they may require. Provided that they shall not at any time hold for such purposes more than four acres of land in the whole in addition to the lands described in the said schedules and that they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products or of storing gas except the lands described in the said schedules.

Construction of Additional Gasworks.

Undertakers
may con-
struct gas-
works on
lands de-
scribed in
schedule.

14.--(1) The Undertakers may on the lands described in the schedule to this Order annexed while they are possessed of the same erect maintain alter extend improve and renew gasworks with all necessary machinery and apparatus and may do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply and may on the same lands convert and manufacture residual products resulting from the manufacture of gas and they may also construct and maintain alter enlarge and renew on the said lands houses offices buildings and other works connected with the undertaking. Provided that nothing herein contained shall authorise the Undertakers to obstruct divert or encroach upon any public highway at present existing on over or across such lands unless and until such highway has been closed or diverted in manner provided by the Highway Act 1835.

(2) The Undertakers may also---

(a) purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture other products of the same kind as the Undertakers are manufacturing from their own residual products

Provided that the quantity of any residual product so purchased by the Undertakers in any year shall not exceed one-third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them; and

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- (b) purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid;

but the Undertakers shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Undertakers or purchased from other gas undertakings is merely subsidiary.

Miscellaneous.

15.—(1) The Undertakers may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within their limits of supply through any other kind of meter or by any other method of supply.

Charges for
gas supplied
by means of
prepayment
meters.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of one shilling and threepence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling and sixpence per one thousand cubic feet if such fittings include a cooking stove.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Undertakers in connection therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

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16. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

As to construction and placing of pipes &c. between mains and meters.

- (a) The Undertakers may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Undertakers' mains and the meter so far as such pipes and fittings are intended to be covered over :
- (b) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (c) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers :
- (d) Every meter to be used in a new building or a building not previously supplied with gas in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building :
- (e) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with :
- (f) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

17. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Undertakers.

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Period of
error in de-
fective
meters.

18.—(1) In any case in which the Undertakers are by virtue of any enactment relating to the undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Undertakers without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Undertakers) and any person who shall reconnect such service pipe with the meter without the consent of the Undertakers shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847. Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

As to mode
of cutting off
supplies.

(2) For the purposes of this section the Undertakers shall (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

19. In any case in which in consequence of any default on the part of the occupier of any premises the Undertakers shall have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Undertakers the expenses of reconnecting the supply and the Undertakers shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Occupier to
pay expenses
of re-
connecting
discontinued
supply.

20. If a person requiring a supply of gas from the Undertakers has previously quitted premises at which gas was supplied to him by the Undertakers without paying to them all gas charges and meter rent due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

Power to
refuse to
supply to
persons in
debt for other
premises.

21. At least twenty-four hours' notice shall be given to the Undertakers by every gas consumer either personally at the office of the Undertakers or in writing before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice

Gas con-
sumers to
give notice
to Under-
takers before
removing.

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Power to lay
down pipes
for ancillary
gas purposes.

22. The Undertakers may lay down repair alter remove and renew mains pipes and culverts in any street within their limits of supply for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to
require use of
anti-fluctua-
tors for gas
engines.

23. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an effective anti-fluctuator together with an effective non-return valve and shall at all times at his own expense keep such anti-fluctuator and valve in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator and valve at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator and valve be found in proper order but otherwise at the expense of such consumer.

Supply of gas
where con-
sumer has
separate
supply.

24. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or to continue to receive from the Undertakers a supply of gas for any premises for purposes for which he has at the same time a supply of gas from an installation other than that of the Undertakers or a supply of electricity unless he shall have agreed to pay to the Undertakers such minimum annual sum as will give to them a reasonable return on the capital expenditure and other standing charges incurred by them in order to meet the possible maximum demand for those premises and the sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Power to
enter pre-
mises and

25. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Undertakers by section 22

of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Undertakers shall not require to take a supply of gas from the Undertakers or to hire from the Undertakers all or any of the pipes meters fittings or apparatus belonging to the Undertakers and let by them on hire to any former occupier of such premises.

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remove gas fittings.

26. The Undertakers may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the Undertakers' limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Undertakers to lay any mains or interfere with any street beyond their limits of supply.

Power to supply gas in bulk.

27. The Undertakers may but only with the consent of the owner of the soil of such street on the application of the owner or the occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply those premises with gas and for those purposes the Gasworks Clauses Act 1847 shall apply as if section 7 of that Act were excepted from incorporation in the Order of 1874 and this Order.

Power to lay pipes in streets not dedicated to public use.

28.—(1) The Undertakers may sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings (in this section called "fittings") for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or such rents and charges and make such terms and conditions as may be agreed upon.

Power to supply gas fittings
Fittings not to be subject to distress.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof.

29. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers or be given by the consumer personally at such office.

Notice of discontinuance.

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and Bocking.*Costs of
Order.

30. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

The SCHEDULE referred to in the foregoing Order.

GAS LANDS.

A piece of land situate in the parish of Braintree in the county of Essex lately forming part of a farm called or known as the Parsonage Farm and being part of the field or enclosure numbered 180 on the $\frac{1}{2500}$ Ordnance map of the county of Essex sheet XXV. (Edition 1897) containing by admeasurement two acres two roods and sixteen perches or thereabouts and situate on the eastern side of and adjoining the existing gasworks of the Company bounded on the north-westerly and westerly sides by the existing gasworks on the north-easterly and south-easterly sides by land belonging or reputed to belong to and in the occupation of Messieurs Lake and Elliot Limited and on the south-westerly side by land belonging or reputed to belong to and in the occupation of the Great Eastern Railway Company.

GREAT MARLOW GAS.

*Great
Marlow.*

Order empowering the Great Marlow Gas Company Limited to raise additional capital and for other purposes.

Preliminary.

Short and
collective
titles.

1.—(1) This Order may be cited as the Great Marlow Gas Order 1920.

(2) The Great Marlow Gas Order 1898 (in this Order referred to as "the Order of 1898") and this Order may be cited together as the Great Marlow Gas Orders 1898 and 1920.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

3. The provisions of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 are hereby incorporated with this Order except where the same are expressly varied by the Order of 1898 or by this Order.

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*Great
Marlow.*

Incorporation of Acts.

4. The several words terms and expressions to which meanings are assigned by any Act incorporated with this Order by the Gas and Water Works Facilities Act 1870 and by the Order of 1898 have in this Order the same respective meanings.

Interpretation.

5. The Great Marlow Gas Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

Capital.

6. The limitation prescribed by the Order of 1898 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as "the additional capital") not exceeding twenty-two thousand pounds including any premium that may be obtained on the sale of any shares or stock under the provisions of this Order. Provided that the share capital of the Undertakers for the purposes of their undertaking shall not exceed in the whole forty-six thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

Additional capital.

7. The Undertakers may from time to time—

Power to borrow.

(a) borrow on mortgage in respect of the additional capital any sum or sums not exceeding in the whole one-half part of the amount of such capital for the time being raised by the Undertakers including any premiums received in respect thereof;

(b) borrow on mortgage in respect of the capital authorised by the Order of 1898 in addition to any moneys which they are already authorised to borrow under that Order the sum of six thousand pounds.

8.—(1) All shares or stock in the additional capital shall be issued in accordance with the provisions of this section.

Additional capital to be sold by auction or tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine. Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk to the district council of every district wholly or

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partly within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply :

(b) A reserve price shall be fixed and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :

(c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds :

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in manner prescribed by resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the Undertakers may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of shares or stock that if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

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—
Great
Marlow.

9. All money raised under this Order including any premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under or in pursuance of the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application
of money.

10. The Undertakers shall not have power to raise the money by this Order authorised to be borrowed on mortgage or any part thereof by the creation of shares or stock instead of borrowing or to convert into capital the amount borrowed under the provisions of this Order.

As to conver-
sion of bor-
rowed money
into capital.

11. The additional capital shall form part of the capital of the Undertakers and all money raised under this Order shall be applied only to purposes to which capital is properly applicable.

Additional
capital to
form part of
capital.

12. The Undertakers shall not in any year declare or make out of their profits any larger dividend on the additional capital than eight pounds in respect of every one hundred pounds which may be issued as ordinary capital and seven pounds ten shillings in respect of every one hundred pounds which may be issued as preference capital.

Limits of
dividend
on capital.

13. In case in any year or in any half year (if the Undertakers declare a dividend half-yearly) the funds of the Undertakers applicable to the payment of dividends shall be insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividend of each such class.

Dividends on
different
classes of
shares or
stock to be
paid rateably.

14. All moneys to be raised by the Undertakers on mortgage under the provisions of the Order of 1898 and this Order shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by them after the commencement of this Order.

Priority of
money raised
on mortgage
or debenture
stock over
other debts.

15. The Undertakers shall not without the consent of the Board of Trade pay interest at a higher rate than seven pounds per centum per annum in respect of any moneys borrowed on mortgage under the authority of the Order of 1898 or this Order.

Limit of
interest on
borrowed
money.

A.D. 1920.

Great
Marlow.
Saving as to
general Acts.

16. Nothing in this Order shall exempt the Undertakers from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Costs of
Order.

17. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

ILFORD GAS.

Ilford. Order empowering the Ilford Gas Company to raise additional capital to purchase additional lands to construct additional gasworks and for other purposes.

Preliminary.

Short and
collective
titles.

1.—(1) This Order may be cited as the Ilford Gas Order 1920.

(2) The Ilford Gas Order 1873 (as amended by the Gas Companies (Standard Burner) (No. 1) Act 1910 and by the Ilford Gas (Standard of Calorific Power) Order 1917 (in this Order referred to as "the Order of 1917") the Ilford Gas Order 1881 the Ilford Gas Order 1894 (as amended by the Order of 1917) the Ilford Gas Act 1899 and the Order of 1917 are herein referred to as the Order or Act of the year in which the same was passed and are together referred to as the Ilford Gas Act and Orders and the Ilford Gas Act and Orders and this Order may be cited together as the Ilford Gas Act and Orders 1873 to 1920.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorpora-
tion of Acts.

3. The following Acts or parts of Acts (except where the same are expressly varied by the Ilford Gas Act and Orders and this Order or any of them) are incorporated with and form part of this Order (that is to say):—

The provisions of the Companies Clauses Consolidation Act 1845 as amended by subsequent Acts so far as the same are respectively applicable to any ordinary stock preference stock or debenture stock of the Undertakers to be issued or created under the powers of this Order and Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:

The provisions of the Lands Clauses Acts (except the provisions with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the Promoters of the undertaking):

A.D. 1920.

Ilford.

The Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive) as amended by the Gasworks Clauses Act 1871:

Provided that for the purpose of its incorporation with the Order of 1873 the Order of 1894 the Act of 1899 and this Order section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided" also that every such contract entered into by the Undertakers shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section.

For the purpose of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order and the term "Company" shall mean the Undertakers.

4. The several terms and expressions to which by any Act in whole or in part incorporated with this Order or by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject or context repugnant to such construction And in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" means the undertaking authorised by the Ilford Gas Act and Orders as extended by this Order the expression "the directors" means the directors of the Undertakers and the expression "the limits of supply" means the area within which the Undertakers are by the Ilford Gas Act and Orders authorised to supply gas.

Interpreta-
tion.

5. The Ilford Gas Company incorporated by the Act of 1899 shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

Financial.

6. Notwithstanding anything contained in section 19 (Capital) of the Act of 1899 the Undertakers may subject to and in accordance with the provisions of Part II. of the Companies Clauses Act 1863 and this Order create and issue the sum of thirty-four thousand nine hundred and ninety-four pounds ten shillings (being the portion of the additional capital of one hundred and seventy-four thousand two hundred and twenty pounds authorised by the Act of 1899 remaining

Power to
issue addi-
tional capital
authorised
by the
Act of 1899
as preference
stock.

A.D. 1920. unissued) as preference stock entitled to a preferential dividend or interest at such rate as the directors may determine at the time or times of the creation thereof.

Ilford.

Further
additional
capital.

7.—In addition to the capital already authorised to be raised by the Ilford Gas Act and Orders the Undertakers may—

(1) raise any further sums not exceeding in the whole three hundred and fifteen thousand pounds (in this Order referred to as “the new capital”) by the creation and issue of ordinary stock or of preference stock entitled to a preferential dividend or interest at such rate as the directors may determine at the time or times of the creation thereof or wholly or partly by one or more of those modes respectively. Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of new capital than will be sufficient to produce including any premiums which may be obtained on the sale thereof the sum of three hundred and fifteen thousand pounds; and

(2) borrow on mortgage in respect of the new capital any sum or sums not exceeding in the whole one-third part of the amount of the new capital at the time actually issued by stock including the premiums (if any) realised on the sale thereof but no part thereof shall be borrowed until the Undertakers have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock including the premiums (if any) realised on the sale thereof have been fully paid up.

As to sale of
stock by
auction or
tender.

8.—(1) All stock forming part of the new capital and all stock which the Undertakers are authorised to issue and have not previously issued under section 19 (Capital) of the Act of 1899 and all stock which the Undertakers are authorised to issue under the section of this Order of which the marginal note is “Power to issue additional capital authorised by the Act of 1899 as preference stock” shall be issued in accordance with the provisions of this section.

(2) All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Undertakers shall from time to time determine. Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of the Ilford Urban District Council and to the Secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for

the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the Ilford Urban District :

A.D. 1920.

Ilford.

- (b) A reserve price shall be fixed and notice thereof shall be sent by the directors in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be :
- (c) No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds :
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid :
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of ordinary and preference stock of the Undertakers in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportion as the directors may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively ;

(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such prices and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the stock.

A.D. 1920. (6) Sections 25 to 28 (both inclusive) of the Act of 1899 are
Ilford. hereby repealed without prejudice to anything done or suffered
 thereunder.

New capital to
 be part of
 capital of
 Undertakers.

9. The new capital shall be part of the capital of the Under-
 takers.

Privileges
 &c. of holders
 of new
 ordinary
 capital.

10.—(1) Any ordinary stock forming part of the new capital shall
 rank *pari passu* with so much of the additional capital authorised by
 the Act of 1899 as has been or shall be issued as ordinary stock and
 so much of the additional capital so authorised and issued as last
 aforesaid and all ordinary stock forming part of the new capital
 shall in all respects and for all purposes be deemed to form part of
 one and the same stock and shall henceforth be called "ordinary C
 stock."

(2) The holders of ordinary stock in the new capital shall in
 proportion to the amount of their stock be entitled to the like rights
 of voting and other rights qualifications and privileges and be subject
 to the like provisions and liabilities as the holders of so much of the
 additional capital authorised by the Act of 1899 as has been or shall
 be issued as ordinary stock.

Restriction as
 to votes in
 respect of pre-
 ference stock.

11. Except as otherwise expressly provided by the resolution
 creating the same no person shall be entitled to vote in respect of
 any new stock to which a preferential dividend shall be assigned.

Debenture
 stock.

12. The Undertakers may create and issue debenture stock subject
 to the provisions of Part III. of the Companies Clauses Act 1863 and
 of section 38 of the Act of 1899.

Preference
 stock or
 debenture
 stock may
 be created
 subject to
 redemption.

13. Any preference stock created and issued under the powers of
 this Order and any debenture stock created and issued under the powers
 of the Act of 1899 or of this Order may be issued subject to the
 condition that the same may be redeemed by the Undertakers at such
 times and on such terms and conditions as shall be expressed on the
 certificates of such stock.

As to con-
 version of
 borrowed
 money into
 capital.

14. The Undertakers shall not have power to raise the money by
 this Order authorised to be borrowed on mortgage or by the creation
 and issue of debenture stock or any part thereof respectively by the
 creation of shares or stock instead of by borrowing or to convert into
 capital any money borrowed under the provisions of this Order.

Priority of
 money raised
 on mortgage
 or debenture
 stock.

15. All money to be raised by the Undertakers on mortgage or
 debenture stock under the provisions of this Order shall have priority
 against the Undertakers and the property from time to time of the
 Undertakers over all other claims on account of any debts incurred or
 engagements entered into by them after the commencement of this

Order Provided always that this priority shall not affect any claim against the Undertakers or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Undertakers which is entitled to rank in priority to or pari passu with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Undertakers for the purposes of their undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Undertakers.

A.D. 1920.

Ilford.

16. All mortgages granted by the Undertakers in pursuance of or in conformity with any Act or Order before the commencement of this Order and subsisting at the date of such commencement shall during the continuance of such mortgages and subject to the provisions of the Act or Order in pursuance of or in conformity with which the same were granted have priority over any mortgages granted under the authority of this Order but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Undertakers.

Existing mortgages to have priority.

17. Section 37 (Arrears to be enforced by appointment of a receiver) of the Act of 1899 is hereby repealed as from the commencement of this Order but without prejudice to any appointment heretofore made or to the continuance of any proceedings then pending The mortgagees of the Undertakers may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Appointment of receiver.

18. All moneys raised under this Order including any premiums shall be applied to the purposes of the undertaking authorised by the Ilford Gas Act and Orders and this Order to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of stock under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend Provided that in any case where a power to raise money by borrowing is made proportionate to the paid-up or nominal capital the premium received from the sale of stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up or nominal capital.

Application of moneys.

19. If any money is payable to a stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge

Receipt in case of persons not sui juris.

A.D. 1920. to the Undertakers Section 24 of the Act of 1899 is hereby repealed
Ilford. without prejudice to anything done or suffered thereunder.

As to receipts
for interest
on debenture
stocks stand-
ing in more
than one
name.

20. Where any debenture stock of the Undertakers whether issued before or after the commencement of this Order is registered in the names of more than one person as holders thereof the receipt of any one of the registered holders of such debenture stock shall in the event of no notice to the contrary being served upon the Undertakers from the other or others of such registered holders be a sufficient discharge to the Undertakers for any interest payable in respect of such debenture stock the receipt whereof is acknowledged by such receipt.

Power to
apply funds.

21. The Undertakers may apply to any of the purposes of this Order to which capital is properly applicable any sums of money which they have already raised or are authorised to raise under the Ilford Gas Act and Orders or this Order and which are not required for the purposes to which they are by the said Act or Orders made specially applicable.

Joint holders.

22. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any stock any one of those persons may vote at any meeting either personally or by proxy in respect of the stock as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the persons so present whose name stands first on the register in respect of the stock shall alone be entitled to vote in respect thereof Several executors or administrators of a deceased member in whose name any stock stands shall for the purposes of this section be deemed joint holders thereof.

Number of
directors.

23.—(1) The number of directors shall be six but the Undertakers may vary the number provided that the number be not at any time less than five nor more than six except that any chief engineer general manager or secretary of the Undertakers may on retirement from office be appointed by the directors an additional director of the Undertakers subject to re-election in the ordinary manner and during such time as such additional director shall remain a director the prescribed number of directors shall be increased by one unless and until one of the other directors shall not seek re-election or shall become disqualified or die.

(2) When and so long as the prescribed number of directors be five or seven then at the first and second ordinary meetings held after a change shall have been made in the number of directors the two directors who shall at such respective meetings have been longest in office shall go out of office and at the third ordinary meeting held after such change the remaining director or directors shall go out of

office and so on from year to year so that the whole number of directors shall go out of office in three years. A.D. 1920.
Ilford.

(3) Section 45 (Number of directors) and section 49 (Rotation of directors) of the Act of 1899 are hereby repealed.

24.—(1) The directors may appoint one or more of their body to be managing director or managing directors of the Undertakers either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places. *As to appointment of managing director.*

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he ceases to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of these modes.

(4) The directors may entrust to and confer upon any managing director such of the powers exerciseable by the directors and subject to such conditions as they may think fit and may from time to time revoke withdraw alter or vary all or some of such powers.

25. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 or otherwise they may from time to time determine the remuneration of the secretary. *Power to directors to determine remuneration of secretary.*

26. Except in the case of a director retiring by rotation and offering himself or being proposed for re-election no person shall be capable of being elected a director of the Undertakers in place either of a director retiring by rotation or of a director dying refusing to act or ceasing to be qualified or being disqualified to act unless notice in writing that such person intends to offer himself or will be proposed for the office of director shall have been given to the secretary of the Undertakers or left at the principal office of the Undertakers fourteen days at least before the day of election. *Notice to be given of persons seeking to be elected directors.*

27. It shall be lawful for the Undertakers to make superannuation and other allowances and to pay pensions or gratuities to any officers servants or employees of the Undertakers who may be temporarily or permanently disabled by sickness infirmity or age and for that purpose to apply the funds and revenue of the Undertakers. *Power to make superannuation and other allowances.*

A.D. 1920.

*Ilford.*Removal of
obligation to
prepare
half-yearly
accounts.

28.—(1) Notwithstanding anything contained in the Act of 1899 or the Acts incorporated therewith or this Order the Undertakers shall not be under any obligation to prepare or to submit to their stockholders or auditors statements of accounts or balance sheets or to hold ordinary general meetings more than once a year and anything which under the Act of 1899 and the Acts incorporated therewith and this Order is authorised to be required to be done at a general meeting of the Undertakers to be held at any specified time may be done at the annual general meeting of the Undertakers at whatever time held.

(2) The directors of the Undertakers may if it appears to them that the profits of the Undertakers are sufficient declare and pay an interim dividend for the first half of any year notwithstanding that the accounts are not audited for the half-year and that a statement of accounts and balance sheet for the half-year is not submitted to the stockholders and may close their register and books of transfer before the date on which the interim dividend is declared in the same manner and for the same time and subject to the same provisions as they may close their register or books before the date on which their ordinary dividend is declared or before the date of their ordinary meeting. Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any half-year in the case of ordinary capital one half of the authorised rates of dividend.

Closing of
register of
transfers of
debenture
stock.

29. The directors may close the register of transfers of debenture stock for a period not exceeding fourteen days previous to each date at which the interest thereon shall be payable and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published or circulating within the limits of supply and any transfer of debenture stock made during the time when the transfer books are so closed shall as between the Undertakers and the person claiming under the same but not otherwise be considered as made subsequently to the payment of any such interest.

Purchase of Lands.

Purchase of
lands by
agreement.

30. The Undertakers may for the purposes of the undertaking purchase or take on lease (by agreement but not otherwise) and hold in addition to the lands described in the schedules to the Order of 1873 the Order of 1894 and the Act of 1899 the lands described in Part III. of the schedule to this Order annexed and any other lands which they may require. Provided they shall not at any time hold for such purposes more than ten acres of land in the whole in addition to the lands described in the said schedules and that they shall not create or permit a nuisance on any such lands and that no

lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products or of storing gas except the lands described in the said schedules.

A.D. 1920.

Ilford.

Construction of Additional Gasworks.

31.—(1) The Undertakers may on the lands described in the schedule to this Order annexed while they are in possession of the same erect maintain alter extend improve and renew or discontinue additional gasworks with all necessary machinery and apparatus and may do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply and may also upon the said lands work up and convert the residual products arising directly or indirectly from the manufacture of gas and they may also construct and maintain alter enlarge and renew on the said lands houses offices buildings and other works connected with the undertaking.

Undertakers
may con-
struct gas-
works on
lands des-
cribed in
schedule.

(2) The Undertakers may also—

(a) purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith on the said lands manufacture other products of the same kind as the Undertakers are manufacturing from their own residual products Provided that the quantity of any residual product so purchased by the Undertakers in any year shall not exceed one-third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them; and

(b) purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid;

but the Undertakers shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Undertakers or purchased from other gas undertakings is merely subsidiary.

Miscellaneous.

32.—(1) Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an efficient anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas.

Anti-fluc-
tuators for
gas engines.

A.D. 1920.

Ilford.

(2) The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Fittings not
to be subject
to distress.

33.—(1) Subject as hereinafter provided any fittings tubes meters pipes apparatus stoves ranges and apparatus for heating for domestic and other purposes by means of gas and other articles and things (in this section called "fittings") let by the Undertakers on hire under the provisions of section 22 of the Order of 1894 shall not be subject to distress or the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the persons in whose possession the same may be.

(2) Subject as hereinafter provided all fittings let by the Undertakers on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises at all times continue to be the property of and removable by the Undertakers Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(3) The Undertakers shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall have upon them respectively a distinguishing plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Power to
enter
premises
and remove
fittings.

34. The power to enter premises and remove pipes meters fittings or apparatus conferred upon the Undertakers by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Undertakers shall not require to take a supply of gas from the Undertakers or to hire from the Undertakers all or any of the pipes meters fittings or apparatus belonging to the Undertakers and let by them on hire to any former occupier of such premises.

For protec-
tion of Com-
missioners of
Sewers of
Levels of
Havering &c.

35. Nothing contained in this Order or which may be done there-
under shall in any way affect prejudice or derogate from the powers
rights or jurisdictions of the Commissioners of Sewers for the Levels
of Havering and Dagenham Ripple Barking East Ham Leyton and
Walthamstow existing at the commencement of this Order.

Costs of
Order.

36. All the costs charges and expenses of and incidental to the
applying for preparing obtaining and confirming this Order and other-
wise in relation thereto shall be paid by the Undertakers and may
in whole or in part be charged against revenue.

The SCHEDULE referred to in the foregoing Order.

A.D. 1920.

Ilford.

ADDITIONAL GAS LANDS.

Part I.

(a) A piece of land with the four shops limekiln and other buildings thereon situate in the parish and urban district of Ilford and bounded on or towards the north by Romford Road on or towards the east by the River Roding and on or towards the south and west by the existing gas lands and works of the Undertakers.

Part II.

(b) A piece of land belonging to or reputed to belong to and in the occupation of the Undertakers situate in the parish of Little Ilford in the borough of East Ham and bounded on or towards the north by a piece of land lying between the gardens of Nos. 2 to 18 (even numbers) Grantham Road and the gardens of Nos. 1 to 10 (inclusive) Gordon Road on or towards the east by the existing gas lands and works of the Undertakers on or towards the south by the back garden of No. 68 Grantham Road and on or towards the west by the back gardens of Nos. 20 to 66 (even numbers) Grantham Road and the cartway lying between Nos. 34 and 36 Grantham Road.

Part III.

(c) A piece of land and roadway at present vested or reputed to be vested in Fred Griffiths Samuel Archibald Vasey and the National Safe Deposit Company Limited as trustees of the will of the late John James Griffiths and used or partly used as an athletic ground and containing by admeasurement thirteen acres thirteen perches or thereabouts situate in the parish of Little Ilford in the borough of East Ham and bounded on or towards the north in part by the "Manor Arms" public-house and in other part by the existing gas lands and works of the Undertakers on or towards the east in part by the said lands and works of the Undertakers and in other part by the River Roding on or towards the south in part by lands belonging or reputed to belong to the Mayor Aldermen and Burgesses of the borough of East Ham in part by Church Road and in other part by the northern boundary of No. 118 Grantham Road and on or towards the west in part by the pieces of enclosed land at the back of the gardens of Nos. 118 to 192 (even numbers) Grantham Road and in other part by the piece of land now used as allotments and situate on the eastern side of Grantham Road and the northern side of Church Road.

A.D. 1920.

STONE GAS.

Stone. Order extending the limits for the supply of gas by the Stone Gas and Electricity Company Limited.

*Preliminary.*Short and
collective
titles.

1. This Order may be cited as the Stone Gas Order 1920 and the Stone Gas Order 1881 the Stone Gas and Electricity Act 1914 (in this Order referred to as "the Act of 1914") and this Order may be jointly cited as the Stone Gas Orders and Act 1881 to 1920.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Incorporation
of Acts.

3. The provisions of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 (except where the same are expressly varied by this Order or are inconsistent with the Stone Gas Order 1881 the Act of 1914 or this Order) are hereby incorporated with and form part of this Order. Provided that section 13 of the Gasworks Clauses Act 1847 shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Company shall be alike in terms and amount under like circumstances" "to all consumers" were added at the end of that section.

Interpreta-
tion.

4. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith and by the Gas and Water Works Facilities Act 1870 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

Undertakers.

Undertakers.

5. The Stone Gas and Electricity Company Limited shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

*Extension of Limits of Supply.*Extension of
limits of
supply.

6. The limits for the supply of gas by the Undertakers are hereby extended so as to include the parishes of Eccleshall Swynnerton Chebsey and Cold Norton in the rural district of Stone in the county of Stafford (in this Order called "the additional limits of supply") and subject to the provisions of this Order the Undertakers shall have and may exercise within the additional limits of supply all and the like

powers privileges and authorities and shall be subject to all and the like duties liabilities and obligations in respect thereof as they now have may exercise and are subject to within the existing limits of supply defined by the Act of 1914.

A.D. 1920.

Stone.

7. If after the expiration of five years from the commencement of this Order the Undertakers have not laid down mains for the supply of gas in any parish included within the additional limits of supply the local authority of the district or any company or person may apply for an Act of Parliament or Provisional Order for the purpose of providing such a supply and for the repeal of the powers of the Undertakers in that behalf.

On failure of Undertakers other undertakers may apply for powers.

8. In executing the works and exercising the powers authorised by this Order so far as they affect any main road or any county or main road bridge (which expression shall in this section include the road over such bridge and the approaches thereto and any culvert) in the county of Stafford the following provisions for the protection of the county council of the administrative county of Stafford (in this section referred to as "the county council") shall unless otherwise agreed in writing apply and have effect (that is to say):—

For protection of Staffordshire County Council.

- (1) All mains pipes and works of the Undertakers to be laid in or along any main road or in or upon or across any county or main road bridge shall be laid in such position in or at the side thereof and at such depth not exceeding three feet as the county council in writing under the hand of their surveyor (hereinafter in this section referred to as "the county surveyor") may direct:
- (2) In the application of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the notice required by section 8 of that Act shall be seven days instead of three days:
- (3) Except in cases of emergency and except when the works consist of service pipes the plan required by section 9 of the said Act shall be accompanied by a section and description of the proposed works and shall be delivered to the county council or the county surveyor by the Undertakers not less than fourteen days before the Undertakers commence to interfere with any county or main road bridge or open or break up any main road for the purpose of executing the works and any difference as to any such plan description or section or as to the temporary or other works referred to in the said section 9 shall be determined by arbitration under this section instead of in the manner prescribed by the said section 9:

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(4) The surplus paving metalling or materials removed during the laying renewal or repair of the mains pipes and works of the Undertakers shall not be placed on the metalled portion of any main road or in or upon any county or main road bridge except subject to such conditions and directions as the county surveyor may reasonably require or give:

(5) If the Undertakers in the execution of any works in or affecting any main road or county or main road bridge shall cause any damage injury or disturbance thereto and shall neglect or refuse to make good all such damage injury or disturbance to the reasonable satisfaction of the county council then it shall be lawful for the county council after reasonable notice to the Undertakers of the alleged neglect or refusal and of the works they propose to execute to do all works necessary for making good all such damage injury or disturbance and the Undertakers shall repay to the county council all costs charges and expenses which the county council shall reasonably and properly incur in carrying out such works including all reasonable expenses of superintendence:

(6) Nothing in this Order shall authorise the Undertakers to interfere with the structural part of any county or main road bridge without the consent in writing of the county council or the county surveyor which consent shall not be unreasonably withheld and may be given upon such conditions as the county council or the county surveyor may reasonably determine:

(7) Nothing in this Order contained shall prejudice or affect the right of the county council at any time or times to divert widen alter the levels of or otherwise alter and improve any main road and to remove alter rebuild widen or repair any county or main road bridge in under over or attached to which any mains pipes or works of the Undertakers are carried in the same manner as the county council might have diverted improved or removed altered rebuilt widened or repaired any such main road or county or main road bridge if this Order had not been granted and such mains pipes and works had not been constructed or laid in under over or attached to such main road or bridge respectively and the county council shall not make any compensation to the Undertakers for any expense or loss to which the Undertakers may be put by reason or in consequence of any such diversion improvement removal

alteration rebuilding widening or reparation And in the event of any such main road or bridge in under over or attached to which any such mains pipes or other works are laid being diverted improved removed altered rebuilt widened or repaired as aforesaid in such manner as to require the removal or alteration of any such mains pipes or works the Undertakers shall at their own cost in all things and when requested by the county council remove or alter the position of the said mains pipes and works and the works by which the same are carried in under over or attached to any such main road or bridge as aforesaid and replace the same to the satisfaction of the county council Provided that during any such diversion improvement removal alteration rebuilding widening or reparation of such main road or bridge as aforesaid the county council shall afford to the Undertakers all reasonable facilities for temporarily carrying such mains pipes and works along the main road or across any stream or river so as not to interrupt the continuous supply of gas or to diminish the pressure of such supply through such mains or pipes and the Undertakers may carry such mains and pipes accordingly and shall reimburse the county council all reasonable expenses incurred by the county council in affording such facilities:

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- (8) All works of the Undertakers so far as they affect any main roads or county or main road bridges shall be so executed by the Undertakers as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road or over any county or main road bridge and the Undertakers shall not open or break up at any one time a greater length than one hundred yards of any main road:
- (9) The Undertakers shall pay to the county council the reasonable costs which the county council may incur in the repair and reinstatement of so much of any main road or of the road over any county bridge in which the mains pipes or other works of the Undertakers are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said mains pipes and other works:
- (10) If any difference at any time arises between the county council and the Undertakers touching this section or anything to be done or not to be done thereunder such difference shall be settled by an arbitrator to be agreed

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upon between them or failing such agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference to arbitration as aforesaid.

For protec-
tion of Lon-
don and
North West-
ern Railway
Company.

9. The following provisions for the protection of the London and North Western Railway Company (hereinafter referred to as "the railway company") shall unless otherwise agreed between the Undertakers and the railway company be in force and have effect:—

(1) In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works in the exercise of the powers of this Order upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only according to such plans to be submitted to and in such manner as shall be previously reasonably approved by him. Provided that if the said engineer does not express his approval or disapproval of the said plans within twenty-one days after the same shall have been submitted to him he shall be deemed to have approved thereof and if the said engineer shall refuse or neglect to superintend any operation after receiving three days' notice in writing from the Undertakers the Undertakers may execute the work without his superintendence:

(2) All such works shall be done by and at the expense of the Undertakers who also shall restore and make good the roads over any such bridges level crossings and approaches which the railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Undertakers and all such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of traffic over such railways or at any station thereon. And if any such injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such

mains pipes or works the Undertakers shall make compensation in respect thereof to the railway company the amount of such compensation unless agreed upon to be determined by arbitration in manner hereinafter provided:

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- (3) Any dispute or difference which may arise between the railway company and the Undertakers with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Undertakers or either of them and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such arbitration.

10. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of
Order.

TAUNTON GAS.

Order to empower the Taunton Gas Light and Coke Company to raise additional capital and for other purposes.

Taunton.

1. This Order may be cited as the Taunton Gas Order 1920 and the Taunton Gas Acts 1845 to 1897 and this Order may be cited collectively as the Taunton Gas Acts 1845 to 1920.

Short and
collective
titles.

2. This Order shall come into force and have effect upon the date when the Act confirming this Order is passed which date is in this Order referred to as "the commencement of this Order."

Commence-
ment of
Order.

3.—(1) The following Acts or parts of Acts are (except where the same are expressly varied by this Order) incorporated with and form part of this Order (that is to say):—

Incorporation of Acts.

The Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking):

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

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The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The conversion of the borrowed money into capital;

The consolidation of the shares into stock;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The making of dividends;

The giving of notices; and

The provision to be made for recording access to the special Act by all parties interested:

~~Part I. (relating to cancellation and surrender of shares)~~ Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:

The Gasworks Clauses Act 1847 (except sections 30 to 34 both inclusive):

The Gasworks Clauses Act 1871.

(2) For the purpose of such incorporation the term "special Act" in the said Acts respectively shall be construed to mean this Order and the term "the Company" shall mean the Undertakers.

(3) In the application to the Undertakers of the provisions of the Gasworks Clauses Act 1847 as incorporated with the Taunton Gas Act 1897 (hereinafter referred to as "the Act of 1897") and this Order—

(a) Section 13 shall be read and construed as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided also that every such contract entered into by the Undertakers shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section:

(b) Sections 30 to 34 both inclusive shall not be deemed to be incorporated with or form part of the Act of 1897 or of this Order:

(c) Section 35 shall be read and construed as though the words from "in case the whole" down to "have been paid" all inclusive had been omitted therefrom and as though the

expression "the prescribed rates" meant the rates of dividend authorised by the Act of 1897 or such rates as reduced or increased in accordance with the provisions of of that Act together with any sum which under the provisions of this Order may lawfully be carried to the special purposes fund.

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(4) Notwithstanding anything contained in the Gasworks Clauses Act 1871 or in any Act relating to the Undertakers with which that Act is incorporated the provisions of sections 128 to 132 (both inclusive) of the Lands Clauses Consolidation Act 1845 shall not apply to any lands which have been or may be acquired by the Undertakers by agreement.

4. The several words terms and expressions to which by any Act in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings And in the construction of this Order or of any such Act for the purposes of this Order the expression "the undertaking" shall mean the undertaking authorised by the Taunton Gas Acts 1845 to 1897 and this Order.

Interpreta-
tion.

5. The Taunton Gas Light and Coke Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Undertakers.

6. The sections of the Taunton Gas Acts 1845 to 1897 set forth in Schedule A to this Order annexed are hereby repealed but without prejudice to anything done or suffered to be done thereunder.

Repeal of
existing
provisions.

7.—(1) Subject to the provisions of the Taunton Gas Acts 1845 to 1897 and this Order the Undertakers may upon the lands described in the schedule to the Act of 1897 while they are possessed of the same erect maintain alter improve extend and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within their limits of supply.

Power to
maintain
gasworks
and convert
residual
products.

(2) The Undertakers may also—

(a) upon the said lands so long as they are possessed of the same work up and convert the residual products arising directly or indirectly from the manufacture of gas by them;

(b) purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith upon the said lands manufacture other products of the same kind as the Undertakers are manufacturing from their own

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residual products Provided that the quantity of any residual product so purchased by the Undertakers in any year shall not exceed one-third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them;

- (c) purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid;

but the Undertakers shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Undertakers or purchased from other gas undertakings is merely subsidiary.

Purchase of Lands.

Power to
purchase
additional
lands.

8. The Undertakers may for the purposes of the undertaking purchase take on lease or acquire (by agreement but not otherwise) and hold in addition to the lands described in the schedule to the Act of 1897 any lands which they may require Provided that they shall not at any time hold for such purposes more than six acres of land in the whole in addition to the lands described in the said schedule and that they shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products except the lands described in the said schedule.

Power to
sell and
lease lands.

9. The Undertakers may sell and dispose of or may exchange or may let on lease for such period as they think fit any lands for the time being belonging to them which they may not at the time be required for the purposes of their undertaking and any such disposal exchange or lease may be for such consideration and subject to such reservations stipulations and conditions as the Undertakers think fit.

Dwelling-
houses for
employees
offices &c.

10. The Undertakers may purchase or take on lease dwelling houses for any of their employees and offices and show-rooms for the purposes of their undertaking and may erect fit up maintain and let any such building upon any lands for the time being belonging to or leased to the Undertakers.

Capital.

New capital.

11.—(1) In addition to the share capital raised by the Undertakers under the Taunton Gas Acts 1845 to 1897 they may from time to time—

- (a) raise any further sums not exceeding in the whole seventy thousand pounds (in this Order referred to as "the new

capital") by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partly by any one or more of those modes respectively But the Undertakers shall not issue or register any transfer of any share under the authority of this Order of less nominal value than ten pounds nor shall any such share or stock issued under the authority of this Order vest in the person accepting the same unless and until the full price of such share or stock together with any premium obtained upon the sale thereof as hereinafter provided has been paid in respect thereof Provided that it shall not be lawful for the Undertakers to create and issue under the powers of this Order any greater nominal amount of capital than will be sufficient to produce including any premiums or discounts which may be obtained or allowed on the sale thereof the sum of seventy thousand pounds;

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(b) borrow on mortgage in respect of the new capital any sum or sums not exceeding in the whole one half part of the amount of such capital for the time being raised by the Undertakers including any premiums received in respect thereof;

(c) borrow on mortgage in respect of the capital authorised by the Taunton Gas Acts 1845 to 1897 in addition to any moneys which they are already authorised to borrow seventeen thousand three hundred and sixty-seven pounds.

(2) No moneys shall be borrowed by the Undertakers under the provisions of this section until the Undertakers have proved to the justice who is to certify under section 40 of the Companies Clauses Consolidation Act 1845 before he so certifies that the whole of such shares or stock have been issued and fully paid up and upon production to such justice of the books of the Undertakers and such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

(3) The Undertakers shall make no further exercise of the power of raising additional capital conferred upon them by the Act of 1897 and no further issue of any capital authorised by that Act shall hereafter be made.

12.—(1) All shares or stock in the new capital shall be issued in accordance with the provisions of this section.

New capital
to be sold by
auction or
tender.

(2) All shares or stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject

A.D. 1920. to such conditions of sale as the Undertakers shall from time to time
Taunton. determine Provided as follows:—

- (a) Notice of the intended sale shall be given in writing to the clerk of the local authority of every district within or partly within the limits of supply and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply:
- (b) A reserve price shall be fixed by the directors and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be.
- (c) No lot offered for sale shall comprise shares or stock of greater nominal value than one hundred pounds:
- (d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:
- (e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares or stock which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and preference shares or stock of the Undertakers in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Undertakers and to the consumers of gas supplied by the Undertakers in such proportions as the Undertakers may think fit or to one or more of these classes of persons only Provided that in the case of an offer to holders of shares or stock if the aggregate amount of shares or stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares or stock which have been offered for sale in accordance with subsection (2) or with subsections (2) and (3) of this section and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any

such shares or stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

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(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective shares or stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares or stock.

13. The Undertakers shall not have power to raise the money by this Order authorised to be borrowed on mortgage or by the issue of debenture stock or any part thereof by the creation of shares or stock instead of borrowing or to convert into capital the amount borrowed under the provisions of this Order.

As to conversion of borrowed money into capital.

14. If any money be payable to a shareholder being a minor idiot or lunatic the receipt therefor of the guardian or committee of his estate shall be a sufficient discharge to the Undertakers.

Receipt in case of persons not sui juris.

15.—(1) The new capital [shall form part of the capital of the Undertakers.

New shares or stock to form part of capital.

(2) The provisions of section 27 (Standard price of gas) of the Act of 1897 with regard to the reduction or increase of dividend shall apply to the dividend on so much of the new capital as is raised as ordinary shares or stock as if that capital were consolidated "A" stock mentioned in the said section.

16. All money raised under this Order whether by shares stock debenture stock or borrowing shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares or stock under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend.

Application of premium.

17. Except as by this Order expressly provided the Undertakers shall not in any year declare or make out of their profits any larger dividend on the new capital than the standard rates of dividend hereinafter mentioned namely eight pounds per centum in respect of every one hundred pounds which may be issued as ordinary capital and seven pounds per centum in respect of every one hundred pounds which may be issued as preference capital.

Limits of dividend on capital.

18. In case in any year or in any half-year (if the Undertakers declare a dividend half-yearly) the funds of the Undertakers applicable to dividend shall be insufficient to pay the full amount of the prescribed rates on each class of ordinary shares or stock in the capital of the Undertakers a proportionate reduction shall be made in the dividend of each such class.

Dividends on different classes of shares or stock to be paid rateably.

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*Taunton.*Priority of
money raised
on mortgage
or debenture
stock over
other debts.

19. All money to be raised by the Undertakers on mortgage or debenture stock under the provisions of this Order shall have priority against the Undertakers and the property from time to time of the Undertakers over all other claims on account of any debts incurred or engagements entered into by them after the commencement of this Order. Provided always that this priority shall not affect any claim against the Undertakers or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Undertakers which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Undertakers for the purposes of their undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Undertakers.

Interest of
all debenture
stock and
mortgages to
rank *pari*
passu.

20. Notwithstanding anything contained in Part III. of the Companies Clauses Act 1863 the interest on all debenture stock and on all mortgages at any time created and issued or granted by the Undertakers under the Act of 1897 or under this Order or any subsequent Act or Order shall subject to the provisions of any subsequent Act or Order rank *pari passu* (without respect to the dates of the securities or of the Acts or Orders or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock granted or issued under this Order.

Saving on
priority of
debenture
stock.

21. Nothing in this Order shall affect any priority of any debenture stock created by the Undertakers in pursuance of the powers of any Act of Parliament before the passing of the Act of 1897.

Appointment
of receiver.

22. The mortgagees of the Undertakers may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than four thousand pounds in the whole.

Undertakers
may issue
redeemable
debenture
stock or
preference
stock.

23.—(1) The Undertakers may create and issue as redeemable debenture stock or preference stock any debenture stock or preference stock respectively which they are by this Order or by the Taunton Gas Acts 1845 to 1897 authorised to create and issue and shall by the resolution creating the same specify the terms and conditions on which the same shall be redeemed.

(2) If it is so provided in the resolution the Undertakers may— A.D. 1920.

(a) Call in and pay off the stock or any part thereof at any time before the fixed date of redemption; and Taunton.

(b) Redeem the stock or any part thereof either by paying off the stock or by issuing to any stockholder subject to his consent other stock in substitution therefor and may for the purpose of providing money for paying off the stock or of providing substituted stock create and issue new stock (either redeemable or irredeemable) or reissue stock originally created and issued under this section. Provided that the creation and issue for the purpose of any particular class of stock does not make the total nominal amount of that stock issued exceed the amount of that class of stock which the Undertakers are for the time being authorised to create.

(3) Save as hereinafter provided the Undertakers shall not redeem out of revenue any preference or debenture stock but they may if they think fit at any time during a period of ten years from the creation and issue of any such preference or debenture stock redeem out of revenue to an amount to be approved by the Board of Trade any such stock created and issued for the purpose of defraying abnormal reparation expenditure due to circumstances arising out of the present war and such redemption may be effected either by way of the repayment by annual instalments of the said sum or by way of a sinking fund calculated to pay off the same at the expiration of the period aforesaid.

24. The Undertakers shall not without the consent of the Board of Trade pay interest at a higher rate than six pounds ten shillings per centum per annum in respect of any moneys borrowed on mortgage or in respect of any debenture stock to be issued under the authority of the Taunton Gas Acts 1845 to 1897 or this Order. Limit of interest on borrowed money.

25. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and the dividend at the prescribed rates on the ordinary capital of the Undertakers the excess shall be carried to the credit of the divisible profits of the undertaking for the next following year. Application of excess of profits over prescribed rates of dividend.

26.—(1) The directors may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called "the special purposes fund." Power to create special purposes fund.

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Taunton.

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(a) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth part of the paid-up capital of the Undertakers including premiums.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way or partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The Undertakers shall transfer to the credit of the special purposes fund any moneys standing to the credit of the insurance fund formed in pursuance of section 16 (If profits exceed the amount limited excess may be invested and form an insurance fund) of the Act of 1897.

Number and
qualification
of auditors.

27.—(1) The prescribed number of auditors shall be one unless the number be increased to two by an order of a general meeting Provided that if the Undertakers think fit a firm may be appointed auditors.

(2) The auditor or auditors appointed by the Undertakers shall be a member or members of the Institute of Chartered Accountants or of the Society of Incorporated Accountants and Auditors or an accountant or accountants approved by the Board of Trade and need not hold shares or stock of the Undertakers.

Interim
dividend.

28. The directors may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Undertakers Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any half-year one-half of the amount of the dividend at the prescribed rates.

Closing of
transfer
books

29. The directors may close the register of transfers for a period not exceeding fourteen days previous to a declaration of any interim

dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within the limits of supply and any transfer made during the time when the transfer books are so closed shall as between the Undertakers and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

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Taunton.

previous to
declaring
interim
dividend.

Profit-sharing Scheme.

30.—(1) The directors may with the sanction of a majority of the votes of the shareholders present personally or by proxy and entitled to vote and voting at an extraordinary general meeting of the Undertakers prepare put in force and from time to time modify alter or rescind a scheme or schemes enabling the employees of the Undertakers or any class or classes of such employees as may be defined in such scheme or schemes to participate in the profits of the undertaking or of any part of the undertaking as part of the terms of remuneration for the services of any such employee.

Profit sharing
and savings.

(2) Any agreement as to service with any employee in pursuance of any such scheme may be entered into with any employee above the age of sixteen years and shall be in writing and may be made on the part of the Undertakers under the hands of any two directors or under the hand of the secretary or of any person from time to time appointed in that behalf by resolution of the directors.

(3) Notwithstanding anything contained in any Act or Order relating to the Undertakers the directors may if and whenever required by any persons being the trustees under any such scheme so to do issue to any employee of the Undertakers or to such trustees such amount of ordinary shares or stock as the trustees may specify (being within the limit of the amount of capital which the Undertakers may for the time being be authorised to issue) without first offering such shares or stock for sale by public auction or tender. Provided that any shares or stock issued under the provisions of this section shall be issued at the average price at which according to the books of the Undertakers sales of shares or stock of the same class were effected within the period of six months immediately preceding the issue or if there has been only one sale or no sale of shares or stock of the same class within the said period then at the price at which the last sale of shares or stock of the same class was effected making such due allowance in each case for any enhancement in price by reason of any accrued dividend as may be determined by the directors.

(4) The directors may also in connection with any such scheme or otherwise accept on deposit on behalf of any employee any savings or other sums of money belonging to such employee and pay interest thereon out of the revenues of the Undertakers at a rate to be agreed

A.D. 1920. but not exceeding that authorised by this Order in respect of borrowed money.
Taunton.

Regulations
affecting
profit-sharing
scheme.

31.—(1) The provisions and regulations respectively set forth in Parts I. and II. of Schedule B to this Order annexed shall apply and have effect in relation to (a) any shares or stock or money belonging to any person or to which any person may be entitled under the terms of any scheme already or which may hereafter be established enabling the employees of the Undertakers or any of them to participate in the profits of the Undertakers and (b) to any money deposited with the Undertakers by any person in their employment otherwise than under any such scheme and such provisions and regulations shall come into force at the commencement of this Order.

(2) The Board of Trade if they think fit may at the request of the Undertakers by order revoke alter or add to any of the said regulations or make any new regulations which in the view of the Board would be conducive to the efficient working of any such scheme for the time being established or in other respects convenient and any order made by the Board in pursuance of this subsection shall have effect as if enacted by Parliament but the Board shall not in any case make any order under this subsection until notice of the intention to make the order has been given by advertisement or otherwise as the Board may direct and an opportunity has been given to any person who appears to the Board to be affected thereby of stating any objections he may have thereto.

Benefit Fund &c.

Benefit fund. 32.—(1) The directors may if they think fit in respect of any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding one halfpenny per one thousand cubic feet of gas supplied by the Undertakers during such year to a fund to be called "the benefit fund":

Provided that the amount of the sums so appropriated and for the time being standing to the credit of the benefit fund shall not at any time exceed the amount which the directors would have been entitled to appropriate to the benefit fund out of the revenue of the Undertakers at the rate aforesaid during the then preceding five years.

(2) The directors may out of the benefit fund grant a gratuity of any sum or make pension or other allowances payments or benefits to any of the weekly servants of the Undertakers who may be disabled or injured in or may be retired from or become incapacitated through age permanent injury or other infirmity from continuing in the service of the Undertakers or to the widow or family or dependents of any such servant and on such terms and conditions as to contributions by such servants or otherwise as the directors may think fit Provided

that it shall not be obligatory on any present or future servant of the Undertakers to become a party to any arrangement made under this Order for securing to him or his widow family or dependents any gratuity pension or other allowance payment or benefit

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(3) The benefit fund shall be applicable for the purposes of this section and for no other purpose whatsoever and no such gratuity pension allowance payment or benefit as is mentioned in this section (other than sick pay) shall be granted or paid to any such servant widow family or dependent otherwise than out of the benefit fund.

(4) The directors may enter into and carry into effect agreements with any insurance company or other association or company for securing to any such servant or the widow family or any dependent of any such servant gratuities pension or other allowances payments or benefits as aforesaid and may make payments out of the benefit fund for the purpose of any such agreement.

(5) The moneys forming the benefit fund or any portion thereof shall be invested in securities in which trustees are by law authorised to invest or in such other manner as may be authorised by resolution of a general meeting of the Undertakers.

(6) Every gratuity pension or other allowance payment or benefit secured made or granted under this Order shall be payable to or in trust for the servant person widow or dependent to whom the same shall be granted and shall not be assignable or chargeable with the debts or other liabilities of such servant person widow or dependent as the case may be.

(7) If the Undertakers shall under the powers of this Order make any scheme involving contributions by their servants such scheme shall not come into operation until such scheme shall have been registered as the rules of a society under the Friendly Societies Act 1896 and any amendment or variation of such scheme shall not be valid until so registered and the provisions of that Act (except the proviso to subsection (1) of section 8 and section 41) so far as they are applicable and are not inconsistent with the provisions of this Order shall apply as if (a) such scheme were the rules of a society to which the said Act of 1896 applies (b) the Undertakers were the trustees of such society (c) the benefit fund were the funds of such society and (d) persons contributing to and participating in the benefit of such fund were the members of such society.

33. The directors may subscribe or make donations to infirmaries and hospitals which are within the limits of supply of the Undertakers and to convalescent homes and similar institutions and to any exhibitions held for any purpose connected with or of benefit to gas undertakings and may for any of those purposes apply the funds and revenues of the Undertakers.

Power to
directors to
make
donations
subscriptions
&c.

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Power to
grant
pensions &c.

34. The directors may in addition to forming a benefit fund under the section of this Order of which the marginal note is "Benefit fund" grant pensions and retiring or superannuation allowances to officers and servants (other than weekly servants) of the Undertakers and for that purpose may apply the funds and revenues of the Undertakers. Provided that the total amount of the payments made by the directors in any year under the provisions of this section shall not exceed an amount equal to one penny per thousand cubic feet of gas supplied by the Undertakers during such year.

*Miscellaneous.*Number of
directors &c.

35. From and after the commencement of this Order:—

(1) The number of directors shall be not more than seven nor less than five;

(2) The quorum of a meeting of directors shall be three;

(3) The rotation of directors shall be in accordance with section 88 (Rotation of directors) of the Companies Clauses Consolidation Act 1845 or as nearly as may be.

As to rights
of preference
shareholders.

36. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any shares or stock issued under the authority of this Order to which a preferential dividend shall be assigned.

Remunera-
tion of
secretary and
auditors.

37. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may from time to time determine the remuneration of the secretary and auditors of the Undertakers.

Joint
holders.

38. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 where several persons are jointly entitled to and registered as holders of any shares in the capital of the Undertakers any one of those persons may vote at any meeting at which holders of shares of the same class are entitled to vote either personally or by proxy in respect of the shares as if he were solely entitled thereto but if more than one of the joint holders be present at any meeting personally or by proxy that one of the said persons so present whose name stands first on the register in respect of the shares shall alone be entitled to vote in respect thereof.

Minimum
charge for
gas laid on to
premises
having a
supply of
electricity or
power gas.

39. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Undertakers to any premises used for trade or business purposes for which he has at the same time a separate supply of electricity or gas for power or other purposes (not being domestic purposes) the Undertakers shall be entitled to charge and receive from him in respect of the supply of gas so laid on such

minimum annual sum as will give to them a reasonable return on the capital expenditure and standing charges incurred by them to meet the possible maximum demand for those premises and the minimum sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

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40.—(1) In any case in which the Undertakers are by virtue of any enactment relating to their undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Undertakers without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Undertakers) and any person who shall reconnect such service pipe to the meter without the consent of the Undertakers shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847 Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any persons by virtue of section 11 of the Gasworks Clauses Act 1871.

As to mode
of cutting off
supplies.

(2) For the purposes of this section the Undertakers shall (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

41. In any case in which in consequence of any default on the part of the occupier of any premises the Undertakers have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Undertakers the expenses of reconnecting the supply and the Undertakers shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Expenses of
reconnecting
discontinued
supply.

42. The power to enter premises and to remove pipes meters and fittings or apparatus conferred upon the Undertakers by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Undertakers shall not require to take a supply of gas from the Undertakers or to hire from the Undertakers all or any of the pipes meters fittings or apparatus belonging to the Undertakers and let by them on hire to any former occupier of such premises.

Removal of
fittings where
gas supply
discontinued.

43.—(1) The Undertakers may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting motive heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take

Power to
supply gas
fittings.

A.D. 1920. such remuneration or rents and charges and make such terms and
Taunton. conditions as may be agreed upon.

(2) All fittings let by the Undertakers on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by the Undertakers. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(3) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the person in whose possession the same may be.

(4) In the case of fittings let for hire after the commencement of this Order the Undertakers shall only be entitled to the privileges and exemptions conferred by subsections (2) and (3) of this section in respect of such fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Anti-
fluctuators
for gas
engines.

44.—(1) Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Undertakers may cease to supply him with gas.

(2) The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

Gas con-
sumers to
give notice to
Undertakers
before
removing.

45.—(1) At least twenty-four hours' notice shall be given to the Undertakers by every gas consumer either personally at the office of the Undertakers or in writing before he shall quit any premises supplied with gas by meter by the Undertakers and in default of such notice the consumer so quitting shall be liable to pay to the Undertakers the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall

require the Undertakers to supply gas to such premises whichever shall first occur. A.D. 1920.

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(2) Notice of the effect of this enactment shall be endorsed on every demand note for gas charges payable to the Undertakers.

46. A notice to the Undertakers from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers or be given by the consumer personally at the office of the Undertakers. Notice of discontinuance.

47. In order to enable the Undertakers to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:— As to construction and placing of pipes &c. between mains and meters.

- (a) The Undertakers may specify the minimum size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises either in the first instance or on the occasion of any renewal between the Undertakers' mains and the meter so far as such pipes and fittings are intended to be covered over:
- (b) The Undertakers may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (c) The specification shall be published once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Undertakers:
- (d) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Undertakers' main but within the outside wall of the building:
- (e) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Undertakers and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Undertakers. Any officer of the Undertakers duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Undertakers' specification

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or if the meter is not placed as required by this section the Undertakers may refuse to supply gas to the premises until the provisions of this section have been complied with :

- (f) Any person to whom the Undertakers refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Undertakers' specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Power to
refuse to
supply
persons in
debt for
other
premises.

48. If a person requiring a supply of gas from the Undertakers for any premises has previously quitted premises at which gas was supplied to him by the Undertakers and has not paid all gas charges and meter rent or other moneys due from him to the Undertakers they may refuse to furnish to him a supply of gas until he pays the same.

Period of
error in
defective
meters.

49.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Undertakers shall be paid by or to the Undertakers to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Undertakers.

Power to
agree for
supply of gas
in bulk.

50. The Undertakers may take receive and contract for a supply of gas in bulk from any local authority company or persons authorised to supply gas under Parliamentary powers in any district adjoining the limits of supply but nothing in this section shall confer any fresh powers upon or extend the existing powers of any such local authority company or persons as aforesaid.

Undertakers
may contract
with local
authority &c.
for supply in
bulk.

51. The Undertakers may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Undertakers to lay any mains or interfere with any street beyond the limits of supply.

52. The Undertakers may subject to the provisions of this Order but only for the purposes of the undertaking within the limits of supply and not so as to acquire any exclusive right therein contract for take and use any leave licence or authority to work use exercise or put in practice any invention under letters patent heretofore made or hereafter to be made granting any right or privilege of working using or vending any invention in relation to the manufacture supply or distribution of gas or the conversion manufacture or utilisation of any products obtainable in or arising from such manufacture or from the materials used therein.

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Power to
take licences
for use of
patents.

53. Proceedings for the recovery of any demand made under the authority of the Taunton Gas Acts 1845 to 1897 or this Order or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

54. Any notice to be served by the Undertakers on a person supplied with gas shall be sufficiently authenticated by the signature of the secretary or other duly authorised officer of the Undertakers being affixed thereto in writing or by a stamp or if it be a notice to pay any charge in respect of a supply of gas by the name either of the secretary or of a collector or other duly authorised officer of the Undertakers being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Authentica-
tion and
service of
notices.

55. Save as otherwise by this Order expressly provided all offences against the Taunton Gas Acts 1845 to 1897 or this Order and all penalties forfeitures costs and expenses imposed or recoverable under those Acts or this Order or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

56. For the protection of the mayor aldermen and burgesses of the borough of Taunton (in this section referred to as "the corporation")

For pro-
tection of
Taunton
Corporation.

A.D. 1920. the following provisions shall unless otherwise agreed in writing
Taunton. between the Undertakers and the corporation have effect (that is to say) :—

- (1) All mains pipes and works to be laid in or along any road or in or upon or across any bridge or approach thereto, repairable by the corporation shall be laid in such position in or at the side thereof as the corporation in writing under the hand of their surveyor may reasonably direct :
- (2) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets shall as regards any such road bridge or approach be not less than seven days instead of three days except in the case of laying down connecting or repairing consumers' service pipes when the notice shall be three days and except in cases of a leakage burst or other emergency when the longest practicable notice shall be given :
- (3) All works in any such road bridge or approach shall be so executed by the Undertakers as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any such road or over any such bridge or approach and the Undertakers shall not break up at any one time a greater consecutive length than one hundred yards of any such road bridge or approach :
- (4) For the purposes of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the corporation shall be deemed in addition to any other persons to be persons having the control or management of any street in the borough not repairable by the inhabitants at large :
- (5) Every main pipe which shall hereafter be laid for the conveyance of gas within the limits of supply of the Undertakers shall be laid at the greatest practicable distance and (if the width of roadway will admit thereof) at the distance of two feet at least from the nearest part of any main water pipe of the corporation already laid down or hereafter to be laid down for the conveyance of water within the said limits except where it shall be necessary to lay the gas pipe across any water pipe in which case such gas pipe shall be laid above or under the water pipe at the greatest practicable distance therefrom and shall form therewith a right angle or as nearly such as may be practicable and shall be where practicable nine feet in length and be so laid down that (except with the consent of the water

engineer of the corporation which shall not be unreasonably withheld) no joint of any gas pipe shall be nearer to any part of the water pipe than two feet. Every such gas pipe and all pipes connected or communicating therewith and all the screws joints inlets apertures or openings therein respectively shall be made and kept airtight so that in every respect the gas shall be prevented from escaping therefrom:

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- (6) If any difference shall arise between the Undertakers and the corporation touching the provisions of this section such difference shall be settled by an arbitrator to be agreed upon between the Undertakers and the corporation or failing agreement to be appointed on the application of either party after notice to the other by the President of the Institution of Civil Engineers and subject as aforesaid the Arbitration Act 1889 or any statutory modification thereof shall apply to the arbitration.

57. If any difference arise between the Undertakers and any road authority (other than the mayor aldermen and burgesses of the borough of Taunton) or railway canal or other company whose lands or works the Undertakers have power to cross under the authority of the Taunton Gas Acts 1845 to 1897 or this Order as to the mode of laying down repairing altering or enlarging their mains pipes or other works or to the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Differences
with road
authority &c.

58. Nothing in this Order shall exempt the Undertakers from the provisions of any general Act relating to the supply of gas which may be passed in this or any future session of Parliament.

Saving as to
general Acts.

59. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers and may be paid by the Undertakers as part of their expenses on revenue account to such extent as they may determine.

Costs of
Order.

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Taunton.The SCHEDULES referred to in the foregoing Order.SCHEDULE A.

THE TAUNTON GAS ACT 1845.

- Section 9 Number and qualification of directors (so far only as it relates to the number of directors).
- Section 10 Power to reduce directors.
- Section 12 Quorum.
- Section 14 Rotation of directors.
- Section 16 Number of auditors.
- Section 19 Limiting charge for gas supplied by meter.
- Section 20 Company to erect an experimental meter &c.
- Section 21 Experiments to be made on application of twelve inhabitants.
- Section 22 Profits of the Company limited to 10% per cent.
- Section 23 Abstract of account of receipt and expenditure to be verified if required.
- Section 24 Rates to be reduced if profits more than 10% per cent.
- Section 25 Penalty in omitting to supply account of receipt and expenditure.
- Section 26 Company may resort to contingent fund in case divisible profits are less than 10% per cent.
- Section 30 Company empowered to construct gasworks &c.
- Section 56 Position of gas pipes with reference to water pipes.
- Section 57 Manner of laying the gas pipes.
- Section 58 Penalty on laying gas pipes contrary to the Act.

THE TAUNTON GAS ACT 1855.

- Section 9 Limiting amount of dividend.
- Section 14 Limiting price of gas.

THE TAUNTON GAS ACT 1897.

- Section 16 If profits exceed the amount limited excess may be invested and form an insurance fund.
- Section 23 For appointment of a receiver.
- Section 29 Reduction of number and quorum of directors.

SCHEDULE B.

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REGULATIONS AFFECTING PROFIT-SHARING SCHEME.

PART I.

REGULATIONS AS TO DISPOSAL OF STOCK &C. ON DEATH OF COPARTNER.

1. In this schedule "the directors" and "the copartnership secretary" mean respectively the directors and the co-partnership secretary of the Undertakers "the trustees" means the trustees appointed under any scheme for the time being in force enabling the employees of the Undertakers or any of them to participate in the profits of the Undertakers "appointor" means any person entitled to make a nomination under clause 2 of this Part of this schedule "stock" means stock of the Undertakers and except in clause 8 of this Part of this schedule includes shares in the capital of the Undertakers "deposits" means and includes any bonus to which the employee may be entitled under the copartnership rules accumulations of dividend and interest savings and other sums of money of an appointor or due to him under any such scheme "nominee" means any person or persons named in a nomination made under this schedule "beneficiary" means and includes any nominee entitled under a nomination made under this schedule and any person entitled under clause 7 of this Part of this schedule to be registered as holder of any stock or to be paid any deposits and any references to the "value" of stock shall be deemed to refer to the average price at which according to the books of the Undertakers sales of stock of the same class were effected within the period of six months immediately preceding the date on which the value of the stock is required to be determined or if there has been only one sale or no sale of such stock during such period then at the price at which the last sale of such stock was effected making due allowance for any probable change in value since such date due to the accrual or payment of dividend.

2. Subject to and in accordance with the regulations set forth in Part II. of this schedule any person holding in his own right any stock under any such scheme as aforesaid of the Undertakers or having any bonus accumulation of dividend and interest savings or other sums of money left in the hands of or deposited with the Undertakers under any such scheme or having any money deposited with the Undertakers otherwise than under any such scheme may if he be of the age of sixteen years or upwards nominate any person or

Disposal of
stock and
deposits by
nomination.

A.D. 1920. persons who on the death of the appointor shall subject to the provisions of this schedule be entitled to be registered as holder of any stock and to be paid any deposits to which the appointor shall be entitled at his death to the extent of a total value of not exceeding one hundred pounds.

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Revocation
of nomina-
tions.

3. Any nomination made under the provisions of this schedule may be revoked in manner mentioned in Part II. of this schedule but shall not be revocable or variable by the will of the appointor or any codicil thereto.

Marriage not
to revoke
nomination.

4. A nomination made under the provisions of this schedule by any person in the employment of the Undertakers shall not be revoked or avoided by the marriage of such person subsequently to the making by him of such nomination and such nomination shall notwithstanding such marriage but in other respects subject to the provisions of this schedule remain in full force and effect.

Proceedings
on death of
nominator.

5. After the expiration of one month from the death of an appointor who has made a nomination in force at his death the directors or the trustees (as the case may require) shall subject to the provisions of this schedule give effect to such nomination and shall in accordance with the directions of the nomination but subject to the extent in clause 2 of this Part of this schedule mentioned register the nominee as holder of the stock and pay to the nominee the deposits to which the appointor was entitled at his death or as the case may be the portion of the stock and deposits comprised in the nomination. Provided that if the directors or trustees receive notice of any claim of a creditor of the deceased appointor before the expiration of one month from his death they shall retain the whole amount of the stock or deposits comprised in the nomination or a sufficient amount thereof to satisfy the claim (whichever amount shall be the less) until the said claim has been satisfied disproved or withdrawn.

Nominations
to take effect
as regards
stock in
priority to
deposits.

6. In the event of the directors or trustees being restricted under the provisions of this schedule from giving effect to any nomination made by a deceased appointor and in force at his death relating to both stock and deposits to the whole extent thereof they shall primarily give effect thereto to the extent to which it relates to stock.

Disposal in
case of no
nomination.

7.—(i) If any appointor shall die without having made any nomination under this schedule in force at his death and the total value of the stock and deposits to which he is entitled at his death does not exceed one hundred pounds and probate of the will of the appointor or letters of administration to his estate are not produced within such time (not being less than one month after his death) as the directors think reasonable then at the expiration of such time the

directors or the trustees (as the case may require) shall subject to the provisions of this Part of this schedule register the stock in the names of and pay the deposits to—

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- (a) the widow (if any) of the deceased appointor ;
- (b) (if there be no widow) the person or persons entitled to his effects according to the statutes for the distribution of the effects of intestates in the respective shares in which they are entitled under those statutes ; or
- (c) (in any event if the directors think fit) any person who has paid the funeral expenses of the appointor up to an amount not exceeding the total amount of such expenses :

Provided that in every case where the deceased appointor has left no widow and the persons entitled under the said statutes are more than two the directors may if they think fit sell the stock and distribute the proceeds (after deducting the proper expenses of such sale and distribution) among such persons in the shares in which they are entitled under the said statutes and for the purposes of such sale the directors may by a resolution authorise the copartnership secretary to execute the transfer of the stock to the purchaser or purchasers thereof :

Provided also that if the directors or trustees receive notice of any claim of a creditor of the deceased appointor before the expiration of one month from the death of the appointor they shall retain the whole amount of the stock or deposits of the deceased appointor in their hands or a sufficient amount thereof to satisfy the claim (which-ever amount shall be the less) until the said claim has been satisfied disproved or withdrawn.

(ii) The provisions of this clause shall also apply in the case of the death of any appointor being entitled at his death to stock or deposits of a total value not exceeding one hundred pounds who has made a nomination in force at his death where such nomination relates to a portion only of the stock and deposits to which he is entitled at his death but in such case the provisions of this clause shall extend only to the portion of the stock or deposits to which the nomination does not relate.

(iii) Any registration of stock or payment of deposits or the proceeds of any sale made either (a) under the foregoing provisions of this clause in the name of or to any person who at the time appears to the directors to be entitled to such stock deposits or proceeds under such provisions or (b) under the provisions of clause 9 or clause 10 of this Part of this schedule in the name of or to any person on behalf of or for the benefit of or as trustee for any person.

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who at the time appears to the directors to be so entitled as aforesaid and any sale of stock to a bonâ fide purchaser made by the directors under the provisions of this clause shall be valid and effectual against any demand made upon the Undertakers or the directors or the trustees by any other person. Provided nevertheless that the legal personal representative of the deceased appointor shall have a remedy for recovery of such stock deposits or proceeds against the person in whose name the same shall have been registered or to whom the same shall have been paid but nothing in this proviso shall confer upon any person any such remedy against a bonâ fide purchaser of such stock or against the widow of a deceased appointor or shall confer upon any person in trust for or on behalf or for the benefit of whom the stock deposits or proceeds have been so registered or paid any such remedy against the person in whose name or to whom the same have been registered or paid.

Provisions as
to fractional
parts of
shares or one
pound of
stock.

8. In any case where under the provisions of this schedule any beneficiary would be entitled to be registered as the holder of any fractional part of a share or of one pound of stock either alone or together with an integral number of shares or of pounds of stock it shall be lawful for the directors in lieu of registering such beneficiary as holder of such fractional part of a share or of one pound of stock to pay to him a sum in cash equal to the value of such fractional part on the date of the death of the appointor in whose name the share or stock was previously registered and the trustees shall if so required by the directors forthwith repay such sum to the directors out of any moneys in their hands as such trustees and such fractional part of a share or of one pound of stock shall forthwith be registered in the names of the trustees but the directors shall not be required to register any transfer of stock which would involve the separate holding of a less amount of stock than five pounds.

Provisions as
to bene-
ficiaries
under
sixteen.

9. Where any beneficiary is under the age of sixteen years and it is proved to the satisfaction of the directors that funds are needed for the maintenance education or benefit of such infant the directors or the trustees (as the case may require) may notwithstanding any other provisions of this Part of this schedule register the stock and pay the deposits to which the beneficiary is entitled or any part thereof in the name of or to any person who may satisfy the directors that he will apply any money so paid to him or received by him from the sale of or as dividend bonus or otherwise on such stock for the maintenance education or benefit of such beneficiary and the receipt of such person shall be a good discharge to the directors and trustees for any sums so paid.

Directors
may appoint
trustee for

10. Where any beneficiary is under the age of sixteen years it shall be lawful for the directors by resolution to appoint any person whom

they think fit to act as a trustee for such beneficiary and thereupon the directors or the trustees (as the case may require) shall notwithstanding any other provisions of this Part of this schedule register the stock and pay the deposits to which the infant beneficiary is entitled or any part thereof in the name of or to such person and such person shall so far as is necessary apply the deposits and any dividends bonuses or interest on the stock or deposits or shall sell the stock or any part thereof and apply the proceeds of such sale for the maintenance education or benefit of the beneficiary and the receipt of such person shall be a good discharge to the directors and trustees for any sums so paid Provided always that if and when the beneficiary attains the age of sixteen years the person so appointed shall transfer or pay to the beneficiary any stock deposits dividends bonuses interest or proceeds of sale then held by such person on behalf of the beneficiary.

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beneficiary
under
sixteen.

11. Where any beneficiary is an infant but over the age of sixteen years it shall be lawful for the infant to sell and transfer any stock registered in his name to the Undertakers or the trustees at the value thereof.

Infant
beneficiary
over sixteen
may sell
stock.

12. The receipt of any beneficiary who has attained the age of sixteen years shall be a good discharge for any sum paid to him under any of the provisions of this schedule notwithstanding that such beneficiary has not attained the age of twenty-one years.

Receipt of
infant
beneficiary
over sixteen.

13.—(1) If the principal value of the estate in respect of which estate duty is payable of any deceased appointor exceeds one hundred pounds any stock or deposits to which he is entitled at his death shall be liable to estate duty as part of the property on which that duty is charged and the directors before dealing with or disposing of the same under the provisions of this schedule may require a statutory declaration by a beneficiary that such principal value does not exceed one hundred pounds.

Estate duty
payable
in certain
cases.

(2) Nothing in this clause however shall render the directors or the trustees accountable for the payment of the estate duty in respect of any stock deposits or other moneys which they have registered paid over distributed or otherwise disposed of in accordance with the provisions of this schedule.

14. Notwithstanding anything in this schedule provided if the total value of the stock and deposits to which the appointor was entitled at his death exceeds eighty pounds the directors and/or the trustees shall before registering stock in the name of or making any payment to any person other than the legal personal representative of the deceased appointor to an extent greater than three-fourths of the total value of such stock and deposits require the production of a certificate from the Commissioners of Inland Revenue of the payment of the estate duty

As to
stock and
deposits
exceeding
eighty
pounds.

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Commissioners stating that no such duty is payable thereon and the
Commissioners shall give such certificate on receipt of payment of
the duty or satisfactory proof that such duty has been paid or that
no such duty is payable as the case may be.

PART II.

REGULATIONS AS TO NOMINATIONS.

1. A nomination shall be in writing in the form prescribed by the directors and shall be signed by the appointor in the presence of a witness.

2. A nomination may be revoked by the appointor by a subsequent nomination made and registered in accordance with these regulations or by writing under his hand signed in the presence of a witness.

3. A nomination or a revocation shall be sent by post to or left at the office of the copartnership secretary during the lifetime of the appointor.

4. A nomination or a revocation when received by the copartnership secretary shall be registered by him forthwith and the receipt thereof shall be acknowledged but the copartnership secretary may refuse to register a nomination or a revocation which does not comply with these regulations.

5. A nomination or a revocation which does not comply with these regulations or has not been received by the copartnership secretary shall not have any validity or effect.

6. A nomination may relate to the whole of the stock and deposits to which the appointor may be entitled or to part only thereof.

7. Except where otherwise stated a nomination shall be deemed to extend to all stock and deposits to which the appointor is entitled at the time of his decease up to a total value not exceeding one hundred pounds but an appointor may in a nomination expressly exclude any part of such stock or deposits from the operation of such nomination.

8. A nomination may be in favour of one person or of several persons and in the latter case may subject as hereinafter mentioned direct that on the death of the appointor the stock shall be registered in the name of and the deposits shall be paid to one or more of the nominees or that the nominees shall be registered as owners of the stock and shall take the deposits respectively in specified shares or

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WATFORD GAS.

Watford.

Short and collective titles.

**Commence-
ment of
Order.**

**Interpreta-
tion.**

“ The directors ” means the directors of the undertaking.

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Watford.
Incorporation of Acts.

4. The following Acts or parts of Acts are (except where the same are expressly varied by this Order) incorporated with and form part of this Order (that is to say):—

- (1) The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

The borrowing of money by the Company on mortgage or bond;

The general meetings of the Company and the exercise of the right of voting by the shareholders;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

- (2) Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts:

- (3) The Gasworks Clauses Act 1847 except sections 31 32 33 and 34 Provided that in its incorporation with the former Acts and this Order section 13 of the said Act shall be read as if the words "or any premises" were inserted after the words "private building" and as if the words "Provided" "also that every such contract entered into by the Undertakers shall be alike in terms and amount under like circumstances to all consumers" were added at the end of that section:

- (4) The Gasworks Clauses Act 1871:

- (5) The Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking).

For the purpose of such incorporation the term "special Act" in the said Acts shall be construed to mean this Order and the term "Company" shall mean the Undertakers.

Undertakers.

Undertakers.

5. The Watford Gas and Coke Company shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers."

Lands and Works.

Power to purchase additional lands.

6. In addition to any other lands which the Undertakers have purchased or are authorised to purchase under the former Acts they may for the purposes of the undertaking purchase or take on lease

(by agreement but not otherwise) and hold the following lands (that is to say):—

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- (a) The lands described in the schedule to this Order annexed:
- (b) Any further lands which they may require not exceeding five acres in extent Provided that the Undertakers shall not create or permit a nuisance on any such lands and that no lands shall be used by the Undertakers for the purpose of manufacturing gas or residual products except the lands described in the schedules to the former Acts and this Order.

7.—(1) Subject to the provisions of this Order the Undertakers may upon the lands described in the schedule to this Order annexed while they are possessed of the same erect maintain alter improve extend and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the limits of supply and may also upon the said lands work up and convert the residual products arising directly or indirectly from the manufacture of gas by them:

Power to construct and maintain additional gasworks.

Provided that no works for the manufacture or storage of gas shall be constructed within 150 feet of the road leading from Watford to St. Albans and no coal shall be stored in the open within 300 feet of such road and no gas holder shall exceed 120 feet in height.

(2) The Undertakers may also—

(a) purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture other products of the same kind as the Undertakers manufacture from their own residual products Provided that the quantity of any residual product so purchased by the Undertakers in any year shall not exceed one-third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them;

(b) purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid;

but the Undertakers shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Undertakers or purchased from other gas undertakings is merely subsidiary.

Borrowing Powers and Financial.

8. Notwithstanding anything contained in the former Acts the Undertakers may subject to the provisions of this Act borrow on

Power to borrow.

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Watford.

mortgage of the undertaking any sum or sums not exceeding in the whole (including the moneys borrowed by the Undertakers on mortgage previously to the commencement of this Order) one half part of the nominal amount of the capital of the Undertakers which at the time of borrowing has been actually issued or raised under the powers of the former Acts including any premiums received on the issue of such capital but no sum shall be borrowed in respect of any capital so raised until the Undertakers have proved to a justice of the peace before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the shares or stock at the time issued, together with the premiums (if any) realised on the sale thereof have been fully paid up.

Limit of
interest on
borrowed
money.

9. The Undertakers shall not without the consent of the Board of Trade pay interest at a higher rate than seven pounds per centum per annum in respect of any moneys borrowed by them after the commencement of this Order and secured by mortgage of the undertaking.

Incorporation of
certain
sections of
Act of 1906.

10. The following sections of the Act of 1906 are incorporated with this Order and shall apply as if the same with the necessary modifications were set out in this Act (that is to say):—

Section 20 (Existing mortgages to have priority);

Section 21 (Debenture stock);

Section 22 (Priority of mortgages and debenture stock over other debts);

Section 23 (Appointment of receiver);

Section 24 (Application of moneys);

Section 25 (Receipt in case of persons not sui juris).

Power to
create a
special pur-
poses fund.

11.—(1) The directors may if they think fit in any year appropriate out of the revenue of the Undertakers as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum of the paid-up capital of the Undertakers including premiums to a fund to be called "the special purposes fund."

(2) The special purposes fund shall be applicable only to meet such charges as an accountant appointed for the purpose by the Board of Trade shall approve as being—

(a) expenses incurred by reason of accidents strikes or circumstances which due care and management could not have prevented; or

(b) expenses incurred in the replacement or removal of plant or works other than expenses requisite for maintenance and renewal of plant and works.

(3) The maximum amount standing to the credit of the special purposes fund shall not at any time exceed an amount equal to one-tenth of the paid-up capital of the Undertakers including premiums.

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Watford.

(4) The moneys forming the special purposes fund or any portion thereof may be invested in securities in which trustees are authorised by law to invest or may be applied for the general purposes of the Undertakers to which capital is properly applicable or may be used partly in the one way and partly in the other.

(5) Resort may from time to time be had to the special purposes fund notwithstanding that the sum standing to the credit of the fund is for the time being less than the maximum allowed by this section.

(6) The moneys or securities standing to the credit of the insurance fund of the Undertakers at the commencement of this Order shall be credited to the special purposes fund and section 16 (If profits exceed the amount limited excess may be invested and form an insurance fund) of the Act of 1883 and section 15 (Insurance Fund) of the Act of 1906 are hereby repealed.

12. The Undertakers may from time to time apply for or towards all or any of the purposes of this Order and for or towards the general purposes of the undertaking to which capital is properly applicable any sums of money which they have already raised or are authorised to raise and which are not required for the purposes to which they are made specially applicable.

Power to
apply funds.

13.—(1) The Undertakers may create and issue as redeemable preference stock or redeemable debenture stock any preference stock or debenture stock which they are by this Order or the former Acts authorised to create and issue and shall by the resolution creating the same specify the terms and conditions on which the same shall be redeemed.

Issue of
redeemable
preference
stock or
debenture
stock.

(2) If it is so provided in the resolution the Undertakers may—

(a) call in and pay off the stock or any part thereof at any time before the fixed date of redemption; and

(b) redeem the stock or any part thereof either by paying off the stock or by issuing to any stockholder subject to his consent other stock in substitution therefor and may for the purpose of providing money for paying off the stock or of providing substituted stock create and issue new stock (either redeemable or irredeemable) or re-issue stock originally created and issued under this section Provided that the creation and issue for the purpose of any particular class of stock does not make the total

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Watford.

nominal amount of that stock issued exceed the amount of that class of stock which the Undertakers are for the time being authorised to create.

(3) The Undertakers shall not redeem out of revenue any debenture stock or preference stock created under the provisions of this section.

Power to
make super-
annuation
and other
allowances.

14. It shall be lawful for the directors to make superannuation and other allowances and to pay pensions to any officers servants or employees (other than weekly servants) of the Undertakers who may be temporarily or permanently disabled by sickness infirmity or age and for that purpose to apply the funds and revenues of the Undertakers.

Power to
directors to
subscribe to
hospitals &c.

15. The directors may subscribe or make donations to infirmaries and hospitals and to convalescent homes and to similar institutions or to any exhibition held for any purpose connected with or of benefit to gas undertakings and to the benevolent and sick funds of the employees of the Undertakers and may for that purpose apply the funds and revenues of the Undertakers.

Power for
directors to
determine
remunera-
tion of
secretary.

16. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 or otherwise they may from time to time determine the remuneration of the secretary of the Undertakers.

Meetings and Dividends.

Annual
meeting of
Undertakers
and interim
dividend.

17.—(1) The ordinary general meeting of the Undertakers shall be held in each year in the months of February or March or at such other time as the directors may appoint.

(2) The directors may in any year declare and pay an interim half-yearly dividend on any class or classes of shares or stock in the capital of the Undertakers out of the profits of the Undertakers without the sanction or direction of a general meeting but no such dividend shall exceed the amount of the authorised dividend payable on such shares or stock.

Closing of
transfer
books
previous to
declaring
interim
dividend.

18. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating within the limits of supply and any transfer made during the time when the transfer books are so closed shall as between the Undertakers and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Provisions as to Supply of Gas.

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19.—(1) Subject as hereinafter provided any stoves ranges machinery apparatus articles or things (in this section referred to as "fittings") let by the Undertakers on hire shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under such premises at all times continue to be the property of and removable by the Undertakers Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

Watford.
Fittings though fixed to premises to remain property of Undertakers.

(2) The Undertakers shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

20. Where any person has for the purposes of a stand-by only a supply of gas laid on by the Undertakers to any premises for which he has at the same time a separate supply of electricity or gas for power or other purposes the Undertakers shall be entitled to charge and receive from him in respect of the supply of gas so laid on such minimum sum as shall be fixed by them not exceeding twenty-five shillings for any one quarter of a year notwithstanding that the ordinary charge for the gas actually consumed in such quarter would amount to a lower sum Provided that in fixing the amount of such minimum charge the Undertakers shall have regard to the probable maximum supply of gas which might at any time be required for such premises Provided also that in respect of any premises for which the whole supply of gas afforded by the Undertakers is taken through a meter having a nominal capacity of not more than ten lights the amount of the minimum charge shall not exceed five shillings for any one quarter of a year.

Minimum charge for gas laid on to premises having a supply of electricity or power gas.

21. Notwithstanding anything contained in this Order or in any Act relating to the Undertakers the price to be charged by the Undertakers for a supply of gas may vary according to the purposes for which the gas is supplied as may be agreed upon between the Undertakers and the person taking such supply Provided that the Undertakers shall not under the powers of this section give any preferential price as between any consumers who shall take a supply of gas for the same purpose under like circumstances.

Power to vary price according to purpose for which gas is supplied.

22. Every consumer of gas supplied by the Undertakers who uses a gas engine shall if required to do so by the Undertakers use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper repair and if any consumer shall make

Anti-fluctuators for gas engines.

A.D. 1920. default in complying with the provisions of this section the Undertakers may cease to supply him with gas. The Undertakers shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking-off removal testing inspecting and replacing to be done at the expense of the Undertakers if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

As to mode
of cutting off
supplies.

23.—(1) In any case in which the Undertakers are by virtue of any enactment relating to the undertaking authorised to cut off and discontinue the supply of gas to any premises in consequence of any default on the part of the occupier of the premises it shall be lawful for the Undertakers without prejudice to any other remedy which may be lawfully available to them to disconnect at the meter the service pipe (whether belonging to the consumer or to the Undertakers) and any person who shall reconnect such service pipe with the meter without the consent of the Undertakers shall be deemed to commit an offence within the meaning of section 18 of the Gasworks Clauses Act 1847. Provided that if and so soon as the matter complained of shall have been remedied nothing in this section shall prejudice or interfere with any rights vested in any person by virtue of section 11 of the Gasworks Clauses Act 1871.

(2) For the purposes of this section the Undertakers shall (subject to the conditions specified in section 22 of the Gasworks Clauses Act 1871) have and may exercise the like powers of entry as are exerciseable under the said section 22 for the purposes of that section.

Expenses of
reconnect-
ing discon-
tinued
supply.

24. In any case in which in consequence of any default on the part of the occupier of any premises the Undertakers have cut off the supply of gas to such premises and the occupier so in default shall desire to resume such supply he shall pay to the Undertakers the expenses of reconnecting the supply and the Undertakers shall not be under any obligation to supply gas to such occupier until he shall have paid such expenses.

Removal of
fittings
where gas
supply
discontinued.

25. The power to enter premises and to remove pipes meters and fittings or apparatus conferred upon the Undertakers by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Undertakers shall not require to take a supply of gas from the Undertakers or to hire from the Undertakers all or any of the pipes meters fittings or apparatus belonging to the Undertakers and let by them on hire to any former occupier of such premises.

Saving as
to general
Acts.

26. Nothing in this Order shall exempt the Undertakers from the provisions of any general Act relating to the supply of gas which may be passed in this or any future Session of Parliament.

27. All the costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

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Costs of
Order.

The SCHEDULE referred to in the foregoing Order.

GAS LANDS.

All those pieces or parcels of land containing in the whole by admeasurement 27 acres 3 roods 16 perches situate in the parish of Watford Rural in the rural district of Watford in the county of Hertford and forming parts of the inclosures numbered 771 and 810 on the $\frac{1}{2500}$ Ordnance map Hertfordshire sheets XXXIX. 14 and 10 (edition of 1914) and bounded on the north-west by the road leading from Watford to St. Albans on the north-east by the inclosure numbered 772 on the said Ordnance map and on the south-east and on the south-west by other parts of the said inclosures numbered 810 and 771 on the said Ordnance map.

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